The Aging Parent Legal Documents Checklist

What to locate, talk over with Dad and ask an attorney about.

Dad is managing fine on his own, and nothing is pressing. He signed a will years ago and there may be a power of attorney somewhere, but nobody in the family has seen the papers. Check what you've done. Anything unchecked is something to look for or ask about when it suits him, not a verdict about Dad or his papers.

Locate

- [ ] Dad's current will. [1]
- [ ] Any trust he has signed, with the papers that go with it.
- [ ] His durable financial power of attorney, the signed document itself. [1]
- [ ] His healthcare decision-making documents and any advance healthcare directive. [1]
- [ ] Deeds and other property documents.
- [ ] Statements and forms that show how his main accounts and property are titled, and who is named on any beneficiary forms.

Talk over with Dad

- [ ] His wishes, in his own words, while he can take part fully in the conversation.
- [ ] Who each document names to make financial decisions and who to make healthcare decisions, copied from the signed page and not from memory.
- [ ] What has changed in the family since each paper was signed, written beside its date.
- [ ] Where the signed papers are kept, and which family members he'd like to know. [1]

Ask an attorney about

- [ ] Whether his existing powers of attorney remain appropriate.
- [ ] Whether his documents contain authority that may be important for future long-term-care planning.
- [ ] Any trusts on your list, and anything about how property is owned or might one day be transferred. Write these down as questions and leave the answers to the attorney.
- [ ] The papers you couldn't find, or aren't sure exist.

What this checklist doesn't do

It helps you locate, talk and write down. It doesn't say whether any of Dad's documents is valid, complete or current, or what he should sign or change. Those are questions for an elder law attorney who knows your state. Nothing here is legal, financial or tax advice.

Ready for the next step?

You know which papers to look for, what to talk over with Dad and what to ask about. The planning interview asks about your family's wider situation, of which the legal papers are one part, and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

Items marked 1 follow AARP's legal checklist for family caregivers; the rest come from the Medicaid Planning Roadmap's own working list for this step.

1. AARP, A Legal Checklist for Family Caregivers